
8:30 a.m. Law and Motion

GEROSIN, ET AL. VS. REDDING SENIOR LIVING LLC, ET AL.

CASE NUMBER: 25CV-0209491

Tentative Ruling on Motion to Compel Deposition: Plaintiff moves pursuant to CCP § 2025.450 for an order compelling the deposition of the Custodian of Records of Defendant Redding Senior Living LLC dba Hilltop Springs Senior Living. CCP 2025.450(a) provides:

If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.

Plaintiff filed this Motion to Compel Deposition pursuant to CCP § 2025.450 on July 2, 2026 seeking to compel a deposition they noticed for July 30, 2026. (Decl. Yarnall ¶ 31 Ex. G.) The Motion was brought prematurely, as the conditions of CCP § 2025.450(a) had not been met. Additionally, although the motion was accompanied by a meet and confer declaration as required by CCP 2025.450(b)(2), it appears this matter could have been resolved without the Court's intervention. Defendants' evidence establishes good faith efforts to find a mutually agreeable date for deposition. Defendants offered a July 15 date, which Plaintiff had previously indicated was acceptable. Plaintiff proceeded to file this motion, promising to take the matter off calendar if the July 30 deposition proceeded. This is not a good faith effort at resolution and unnecessarily burdens the court and parties with motion practice.

Additionally, the Plaintiff continued hearing on this Motion from August 3 to August 24. Plaintiff also filed a Reply on August 17, 2026, which raises new facts and argument not presented in the original Motion. Moreover, Plaintiff concedes that it has taken a deposition that partially satisfies the relief sought here. Plaintiff is directed to comply with the CCP and to undertake good faith efforts to meet and confer before seeking court intervention. The Motion is **DENIED**.

HOLLOWELL VS. LITTLEPAGE, ET AL.

CASE NUMBER: 25CV-0206936

Tentative Ruling on Motion for Terminating Sanctions: Defendant Joshua Littlepage move for an order of terminating sanctions against Plaintiff William Hollowell pursuant to CCP § 2030.010, 2023.010, 2030.300(e) and 2031.320.

As a preliminary matter, the Court notes that Plaintiff filed a declaration on July 21, 2026, one day after the present motion was filed. Plaintiff's declaration has attached a number of documents including further responses to discovery. The Court will consider the contents of the declaration in ruling on this motion. Further, the Court notes that the declaration also attached a purported motion for relief, but it was not properly filed as a motion. Therefore, the Court finds that the "motion" is not before the Court at this time.

Merits: Misuses of the discovery process include disobeying a court order to provide discovery. CCP § 2023.010(g). The court may impose sanctions against anyone engaging in misuse of the discovery process, including monetary, issue, evidence, and terminating sanctions. CCP § 2023.030. Monetary sanctions *shall* be imposed unless the court finds the one subject to the sanction acted with substantial justification making imposition of sanctions unjust. CCP § 2023.030(a). Issue, evidence, and terminating sanctions *may* be imposed. CCP § 2023.030(b), (c), and (d); 2025.450(h).

Here, Defendant previously filed motions to compel further responses which were granted at the hearing on January 26, 2026. The order dated February 2, 2026 provided that the further responses were due within 15 days of the Notice of Entry of Order and that sanctions in the amount of \$2,245 were payable within 30 days of the Notice of Entry of order. The Notice of Entry of Order was filed on February 5, 2026. Therefore, Plaintiff had until February 20, 2026 to provide the responses and until March 7, 2026 to pay the sanctions. It is undisputed that Plaintiff has not complied with the Court's order to provide further responses and further has not complied with the Court's order to pay the monetary sanctions. Additionally, Defendant previously filed a motion to deem matters admitted which was granted at the hearing on July 13, 2026. Finally, Defendant previously noticed Plaintiff's deposition, but he failed to appear for his deposition.

Based on the foregoing, Defendant would normally be entitled to monetary sanctions pursuant to CCP § 2023.030; however, no monetary sanctions were requested. Defendant has only requested terminating sanctions. Issue, evidence, and terminating sanctions are discretionary. Case law instructs that severe sanctions (i.e., evidence or terminating sanctions) for abusing the discovery process, are usually warranted only if a party willfully fails to comply with a court order. *See R.S. Creative, Inc. v. Creative Cotton, Ltd.* (1999) 75 CA4th 486, 495; *Vallbona v. Springer* (1996) 43 CA4th 1525, 1545; *Biles v. Exxon Mobil Corp.* (2004) 124 CA4th 1315, 1327; *Aghaian v. Minassian* (2021) 64 CA5th 603, 618-620, —“absent unusual circumstances, nonmonetary sanctions are warranted only if a party [acts] willfully” (but concluding that willfulness is not required for issue and evidence sanctions under CCP § 2023.030(b) and (c)).

The trial court has broad discretion in selecting discovery sanctions, subject to reversal only for abuse. The trial court should consider both the conduct being sanctioned and its effect on the party seeking discovery and, in choosing a sanction, should attempt to tailor the sanction to the harm caused by the withheld discovery. The trial court cannot impose sanctions for misuse of the discovery process as a punishment.

The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination. “Discovery sanctions ‘should be appropriate to the dereliction and should not exceed that which is required to protect the interests of the party entitled to but denied discovery. If a lesser sanction fails to curb misuse, a greater sanction is warranted: continuing misuses of the discovery process warrant incrementally harsher sanctions until the sanction is reached that will curb the abuse. “A decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.”

Doppes v. Bentley Motors, Inc. (2009) 174 Cal. App. 4th 967, 992 (internal citations omitted).

Plaintiff's declaration filed July 21, 2026 contains responses to the outstanding discovery. While the responses were untimely and may be insufficient (the Court is making no finding in that regard), they show that Plaintiff is attempting to comply with his discovery obligations. Under the circumstances, the imposition of terminating sanctions would be unjust. There is insufficient evidence that the discovery violations were willful or that less severe sanctions would not produce compliance with the discovery rules. *Id.* While less severe sanctions such as issue or evidentiary sanctions would appear appropriate, none were requested. The Court cannot issue an order awarding monetary, issue or evidentiary sanctions since Plaintiff has not been provided notice of that request in the underlying notice of motion and memorandum of points and authorities.

The motion is **DENIED** without prejudice to Defendant filing a new motion for monetary, issue or evidentiary sanctions, if there are additional discovery violations including and not limited to failing to comply with the Court's order compelling Plaintiff's deposition discussed below. A proposed order was lodged with the Court and will be modified to reflect the denial.

Tentative Ruling on Motion for Order Compelling Plaintiff's Deposition: Defendant Joshua Littlepage moves for an order to compel Plaintiff to attend a deposition pursuant to CCP § 2025.420. The motion is unopposed.

If a party served with a deposition notice fails to appear for their deposition without serving a valid objection, the party giving notice may move for an order compelling the deposition. CCP § 2025.450. Defendant's evidence establishes that Plaintiff was properly served with a deposition notice, failed to object to the deposition notice and failed to appear for the deposition.

Defendant's Motion to for Order Compelling Plaintiff's Deposition is **GRANTED**. Plaintiff shall appear for his deposition within 30 days of service of the notice of entry of order. A proposed order has been lodged and will be modified.

JEFFERSON CAPITAL SYSTEMS, LLC VS. PENDRAK
CASE NUMBER: 25CV-0208892

Tentative Ruling on Order to Show Cause Re Sanctions: An Order to Show Cause Re: Sanctions ("OSC") issued on June 30, 2026, to Plaintiff and Counsel for failure to timely seek default pursuant to CRC 3.110(G). No response to the OSC has been filed. No request for entry of default has been filed. Sanctions will be imposed in the amount of \$250. The clerk is instructed to prepare a separate Order of Sanctions. An appearance is necessary on today's calendar. Failure to appear will result in the issuance of an order to show cause re dismissal.

JUNEMAN VS. FCA US LLC, ET AL.
CASE NUMBER: 25CV-0207145

Tentative Ruling on Motion for Sanctions: Defendant FCA US, LLC moves for sanctions under CCP 871.26(j) based on Plaintiff's failure to comply with the disclosure requirements set forth in CCP 871.26(b). The Motion is properly noticed and is unopposed.

CCP § 871.26(b) provides that within 60 days after the filing of the answer or other responsive pleading, all parties shall, without awaiting a discovery request, provide to all other parties an initial disclosure and documents pursuant to subdivisions (f), (g), and (h).